



CHAPTER 5.

An Act to make provision in connection with the appointment of a Minister of Town and Country Planning; to provide for the transfer to that Minister of certain statutory functions; and to provide for the establishment of statutory Commissions for the purpose of exercising such functions in relation to the use and development of land in England and Wales as may hereafter be determined.

[4th February 1943.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. It shall be lawful for His Majesty to appoint a Minister of Appointment Town and Country Planning, to be charged with the duty of and functions of securing consistency and continuity in the framing and execution of Minister of a national policy with respect to the use and development of Town and Country land throughout England and Wales, and, as from such date as Planning. His Majesty may by Order in Council appoint, there shall be transferred to that Minister all functions exercisable by the Minister of Works and Planning under the Town and Country Planning Act, 1932. 22 & 23 Geo. 5 c. 48.

2. The Minister of Town and Country Planning (hereinafter referred to as "the Minister") shall take the oath of allegiance Oath of and the official oath, and the Promissory Oaths Act, 1868, shall Allegiance and Official Oath. have effect as if the name of the Minister were included in the 31 & 32 Vict. c. 72. First Part of the Schedule to that Act.

3.—(1) There shall be paid to the Minister an annual salary Remuneration, not exceeding five thousand pounds. appointment of officers, &c.

(2) The Minister may appoint such secretaries, officers and servants as he may with the consent of the Treasury determine, and there shall be paid to the secretaries, officers and servants so appointed such salaries or remuneration as the Treasury may determine.

Capacity to
sit in House
of Commons.

4. A person holding office as Minister of Town and Country Planning or as Parliamentary Secretary to the Ministry shall not thereby be rendered incapable of being elected as a member of the Commons House of Parliament or of sitting or voting as such a member, but only one such Parliamentary Secretary shall sit as a member of that House.

Seal style and
acts of
Minister.

5.—(1) The Minister shall for all purposes be a corporation sole and shall have an official seal which shall be authenticated by the signature of the Minister or of a secretary of the Ministry or of any person authorised by the Minister to act in that behalf.

(2) The seal of the Minister shall be officially and judicially noticed, and every document purporting to be an instrument made or issued by the Minister and to be sealed with the seal of the Minister authenticated in the manner provided by this section, or to be signed by a secretary of the Ministry or any person authorised as aforesaid, shall be received in evidence and be deemed to be so made or issued without further proof, unless the contrary is shown.

(3) A certificate signed by the Minister that any instrument purporting to be made or issued by him was so made or issued shall be conclusive evidence of that fact.

31 & 32 Vict.
c. 37.

(4) The Documentary Evidence Act, 1868, shall apply to the Minister as if his name were included in the first column of the Schedule to that Act, and as if he or a secretary of the Ministry or any person authorised by him to act on his behalf were mentioned in the second column of that Schedule, and as if the regulations referred to in that Act included any document issued by the Minister.

Additional
provisions
as to transfer
of functions to
the Minister.

6.—(1) As from the date appointed for the purpose of section one of this Act, the provisions of the Town and Country Planning Act, 1932, specified in the first column of the First Schedule to this Act shall have effect subject to the amendments set out in the second column of that Schedule, being amendments consequential upon the transfer of functions effected by the said section one.

(2) If it appears to His Majesty to be expedient that any other functions relating to the use and development of land in England and Wales exercisable by any Minister of the Crown under any enactment should be exercised by the Minister, His Majesty may by Order in Council transfer those functions to the Minister.

(3) His Majesty may by Order in Council make such incidental, consequential or supplemental provisions as appear to His Majesty to be necessary or expedient in consequence of any transfer effected by or under this Act, and in particular, but without prejudice to the generality of the foregoing provision, any such Order in Council may—

- (a) modify or adapt any enactment, order, regulation, scheme, deed, agreement or other instrument relating to the transferor or to his functions or property, to such extent as appears to be necessary and expedient as aforesaid ;
- (b) provide for the carrying on and completion by, before or under the authority of the Minister or of any person appointed by him of anything begun by, before or under the authority of the transferor, or of any person appointed by him, before the date of transfer, and for the substitution of the Minister for the transferor in any contract or legal proceeding made or begun before that date ;
- (c) provide for securing that any order, regulation, direction, approval, appointment, requirement or authorisation made or given by the transferor before the date of transfer shall continue in force to the like extent and subject to the like conditions as if it had been duly made or given by the Minister.

(4) In this section the expression “ the transferor ”, in relation to any functions transferred by or under this Act, means any Minister of the Crown by whom those functions were exercisable at any time before the date of transfer, and the expression “ the date of transfer ” means the date on which the transfer of those functions takes effect.

(5) Any Order in Council under this section shall be laid before Parliament as soon as may be after it is made :

Provided that no such Order in Council shall be deemed for the purposes of section one of the Rules Publication Act, 1893, 56 & 57 Vict. c. 66, to be a statutory rule to which that section applies.

7. As from the date appointed for the purpose of section one of this Act, the Minister of Works and Planning shall be known as the Minister of Works ; the Minister of Works and Planning Act, 1942, shall be cited as the Minister of Works Act, 1942 ; the provisions of that Act specified in the first column of Part I of the Second Schedule to this Act shall be repealed to the extent specified in the second column of that Part, but without prejudice to the provisions of any Order in Council made under any of those provisions, and the provisions of the said Act specified in the first column of Part II of the said Schedule shall have effect subject to the amendments set out in the second column of that Part.

Modifications
of Minister of
Works and
Planning Act,
1942.
5 & 6 Geo. 6.
c. 23.

Power to
establish
Commissions.

8.—(1) If it appears to His Majesty to be expedient to establish any Commission for the purpose of assisting the Minister in the exercise of his functions in relation to the use and development of land in England and Wales, or in any area therein, His Majesty may by Order in Council make provision for that purpose, and, without prejudice to the generality of the foregoing provision, an Order under this section for the establishment of any Commission may provide—

- (a) for regulating the qualification, appointment, term of office and remuneration of members, officers and servants of the Commission ;
- (b) for regulating the procedure and quorum of the Commission ;
- (c) for determining the functions and proceedings of the Commission, and the extent to which they shall be exercised and performed subject to the control of the Minister ;
- (d) for enabling the Commission, if incorporated by the Order, to hold land without licence in mortmain notwithstanding that the land may not be held on behalf of the Crown ;
- (e) for such incidental and supplemental matters as His Majesty considers expedient.

(2) The Minister shall lay before Parliament the draft of any Order which it is proposed to recommend His Majesty in Council to make under this section, and no further proceedings shall be taken in relation thereto except in pursuance of an Address presented to His Majesty by both Houses of Parliament praying that the Order may be made in the terms of the draft.

Expenses.

9. Any expenses incurred for the purposes of this Act, including the remuneration payable to the Minister and to any secretaries, officers or servants appointed by him, and such sums, if any, as may be required to defray or contribute towards, the expenses of any Commission established under this Act shall, to such amount as may be sanctioned by the Treasury, be defrayed out of moneys provided by Parliament.

Variation of
Orders in
Council.

10. Any power conferred by this Act to make an Order in Council shall include power to vary or revoke the Order by a subsequent Order in Council.

Construction.

11. References in this Act to any enactment shall be construed as references to that enactment as amended by or under any subsequent enactment.

Short title.

12. This Act may be cited as the Minister of Town and Country Planning Act, 1943.

SCHEDULES.

FIRST SCHEDULE.

Provision Amended	AMENDMENTS OF 22 & 23 GEO. 5. C. 48.	Section 6.
	Amendment	
Section 2 ...	In subsection (3) for the reference to the Minister of Health which, by virtue of an Order in Council made under the Minister of Works and Planning Act, 1942, was to be construed as a reference to the Minister of Works and Planning there shall be substituted a reference to the Minister of Town and Country Planning.	
Section 32 ...	For the words " the Minister " there shall be substituted the words " the Minister of Health ".	
Section 51 ...	In subsection (3) for the words " the Minister " there shall be substituted the words " the Minister of Health ".	
Section 52 ...	In subsection (2) the words " by the Minister ", in the second place where those words occur, shall be omitted.	
Third Schedule.	In the proviso to paragraph 2 of Part II the words " other than the Ministry of Health " shall be omitted.	

SECOND SCHEDULE.

REPEALS AND AMENDMENTS OF 5 & 6 GEO. 6. C. 23.

Section 7.

PART I

REPEALS.

Title	... The words " and Planning " ; and the words " and of functions of the Minister of Health in relation to town and country planning ".
Section 1	... In subsections (1) (2) and (3) the words " and Planning " wherever those words occur ; and in subsection (1) the words from " and (c) all functions " to the end of the subsection.
Section 5	... In subsections (1) (2) and (4) the words " and Planning " wherever those words occur.
Section 6	... In subsection (1) paragraph (e) ; in subsection (2) the words " and the Minister of Health " ; and in subsection (3) paragraph (b).
Section 7	... In subsection (1) the words " and Planning ".

2ND SCH.

—cont.

PART II

AMENDMENTS.

- Title ... After the words "Commissioners of Works" there shall be inserted the word "and".
- Section 4 ... For the words from "during any period" to the end of the section there shall be substituted the words "only one such Parliamentary Secretary shall sit as a Member of that House".
- Section 6 ... In subsection (2) after the words "Commissioners of Works" there shall be inserted the word "and".

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